

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000030

C.Villa

Recorded On: 4/28/2026 11:14:12 AM

Number of Pages: 1

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**Examined and Charged as Follows:**

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY  
because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number      00000000030  
Receipt Number        1980448  
Recorded Date/Time:    4/28/2026 11:14:12  
                                  AM  
Station:                 CCH01-CCK099

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,  
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

## APPOINTMENT OF SUBSTITUTE TRUSTEE and NOTICE OF TRUSTEE'S SALE

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

The undersigned, in accordance with Texas Property Code §51.0076, as attorney-in-fact for the Mortgagee or Mortgage Servicer, hereby removes the original trustee and any and all successor substitute trustees, and appoints in their stead: Nestor Solutions, LLC, Auction.com, LLC, Xome Inc., Tejas Corporate Services, LLC, NFPDS-TX LLC, Agency Sales and Posting LLC, Abstracts/Trustees of Texas, LLC, Resolve Trustee Services, LLC, or any one of them, c/o Nestor Solutions, LLC, 214 5<sup>th</sup> Street, Suite 205, Huntington Beach, California 92648, as Substitute Trustee, to hereafter exercise all powers and duties conferred upon the original trustee under the Deed of Trust, and further authorizes and directs the Substitute Trustee to conduct and execute the remedies provided to the beneficiary therein.

**1. Date, Time, and Place of Sale.**

**Date:** 6/2/2026

**Time:** The earliest time the sale will begin is 10:00 AM, or within three (3) hours after that time.

**Place:** El Paso County Courthouse, Texas, at the following location: 4100 E. PAISANO DR, EL PASO, TX 79905 THE EL PASO COUNTY COLISEUM, 4100 E. PAISANO DR, EL PASO, TX 79905  
, or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioners Court.

**2. Property To Be Sold.** LOT 3, BLOCK 37, OF PASEO DEL ESTE UNIT 8 PHASE I, A SUBDIVISION IN EL PASO COUNTY, TEXAS, ACCORDING TO THE MAP OR PLAT OF RECORD IN CLERK'S FILE NO. 20220084742, REAL PROPERTY RECORDS OF EL PASO COUNTY, TEXAS.

**Commonly known as:** 648 PASEO MUSICAL ST EL PASO, TX 79928

**3. Instrument to be Foreclosed.** The instrument to be foreclosed is the Deed of Trust dated **10/31/2023** and recorded in the office of the County Clerk of El Paso County, Texas, recorded on **11/2/2023** under County Clerk's File No **20230080997**, in Book --- and Page --- The subject Deed of Trust was modified by Loan Modification recorded 06/23/2025 as Instrument No. 20250049362 in the Real Property Records of El Paso County, Texas.

|                            |                                                                                                                                                  |
|----------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Grantor(s):</b>         | <b>ANDREW S. PIERCE JOINED HEREIN PRO FORMA BY MY SPOUSE, HEATHER POLLAY</b>                                                                     |
| <b>Original Trustee:</b>   | ALLAN B. POLUNSKY                                                                                                                                |
| <b>Original Mortgagee:</b> | MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., AS BENEFICIARY, AS NOMINEE FOR AMERICAN PACIFIC MORTGAGE CORPORATION, ITS SUCCESSORS AND ASSIGNS |
| <b>Current Mortgagee:</b>  | Freedom Mortgage Corporation                                                                                                                     |
| <b>Mortgage Servicer:</b>  | Freedom Mortgage Corporation                                                                                                                     |

4. **Terms of Sale.** The sale will be conducted as a public auction to the highest bidder for cash, subject to the provisions of the Deed of Trust permitting the Mortgagee thereunder to have the bid credited to the note up to the amount of the unpaid debt secured by the Deed of Trust at the time of sale. Pursuant to §51.009 of the Texas Property Code, the property will be sold in "AS IS, WHERE IS" condition, without any express or implied warranties, except as to the warranties of title (if any) provided for under the Deed of Trust.

5. **Notice Regarding Federal Reporting Requirements.** Please be advised that the highest bidder ("purchaser") at this trustee's sale may be required to provide information, documentation and/or certification as mandated by applicable federal law, and entity and trust purchasers should be prepared to provide beneficial ownership information as may be required by federal reporting requirements effective for transfers of residential real property to covered transferees on or after 3/1/2026. If applicable, the required information must be provided to the trustee before a trustee's deed will be issued for covered transfers. Additional information regarding these regulations and the required transferee information and certifications can be found at [https://www.fincen.gov/rre-faqs#D\\_5](https://www.fincen.gov/rre-faqs#D_5) or <https://www.federalregister.gov/documents/2024/08/29/2024-19198/anti-money-laundering-regulations-for-residential-real-estate-transfers>.

6. **Obligations Secured.** The Deed of Trust provides that it secures the payment of the indebtedness and obligations described therein (collectively, the "Obligations"), including, but not limited to: (1) the promissory note in the original principal amount of \$289,950.00, executed by ANDREW S. PIERCE JOINED HEREIN PRO FORMA BY MY SPOUSE, HEATHER POLLAY, and payable to the order of MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., AS BENEFICIARY, AS NOMINEE FOR AMERICAN PACIFIC MORTGAGE CORPORATION, ITS SUCCESSORS AND ASSIGNS; (2) all renewals and extensions of the note; and (3) any and all present and future indebtedness of the Trustor(s) to the current holder of the Obligations, secured by the Deed of Trust. Default has occurred in the payment of the indebtedness, and the same is now wholly due and payable. The owner and holder of the Obligations has requested that the Substitute Trustee sell the Property to satisfy the indebtedness.

7. **Mortgage Servicer Information.** The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property Code §51.0025, the Mortgage Servicer is authorized to collect the debt and administer any resulting foreclosure of the lien securing the Property referenced above. **Freedom Mortgage Corporation** as Mortgage Servicer, represents the current mortgagee, whose address is:

c/o Freedom Mortgage Corporation  
11988 EXIT 5 PKWY BLDG 4  
FISHERS IN 46037-7939  
Phone: (855) 690-5900

**Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active-duty military service to the sender of this notice immediately.**

  
BEVERLY MITNISIN

Dated: 4/22/2026

  
BEVERLY MITNISIN

NESTOR SOLUTIONS, LLC, as attorney-in-fact for  
FREEDOM MORTGAGE CORPORATION



By:

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Senior Vice President  
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